

Safeguarding the Best Interests of Children of Incarcerated Mothers

Introduction

The increasing incarceration of mothers globally impacts children and families significantly (Maedzenge & Beichner-Thomas, 2023). International treaties like the CRC emphasize the child's best interests, advocating against unnecessary separation from parents (Senko, 2023). The CRC harmonizes children's rights protections across regions, ensuring decisions prioritize the child's welfare (Rainer, 2024).

The 'best interests' principle is central to legal frameworks, prioritizing children's welfare in all actions and legal proceedings (Rubina, 2023). Rooted in the principles of the Declaration of the Rights of the Child (1959), it supports holistic child development (Clara, 2022). This principle is crucial in deciding whether children should accompany their imprisoned mothers, with the CRC specifically stating separation should only occur if necessary (Terry & George, 2024).

Background

Imagine the suffering and chaos in a child's life who abruptly loses the everyday presence and support of his or her mother to incarceration, with an uncertain future and myriad more emotional and practical problems. This puts unique problems at their children whose mothers get imprisoned. With few exceptions, mothers are most often the primary force in raising their children on a daily basis, unlike fathers. When a mother is in prison, the life of her child is likely to be torn apart, affecting the emotional, social, and educational development of that child. Studies have shown that children of incarcerated parents are more likely to experience mental health issues, academic struggles, and behavioral problems (Eddy & Poehlmann, 2019). The number of women serving prison sentences in the United States has increased by more than 700% since 1980, with over 60% of these women being mothers to minor children. (The Sentencing Project, 2020).

Jörg et al., (2020), estimate that 50% of the prisoners in the United States have children below the age of 18 years; this is a representation of the proportion of parental imprisonment on children in the US. This statistic demonstrates how wide the spread of minors affected by having a parent in jail. Separation practices is quite rigid in nature in countries like France, where children of incarcerated mothers are separated at 18 months, Germany and Switzerland tend to permit a stay of children with their mothers in specialized prison conditions until they reach preschool or school age. These countries seem to favor legally feasible non-custodial settings, such as electronic

monitoring, in the best interests of the child. The attachment-oriented parent-child intervention called "CHANCE" supported a group of imprisoned mothers, with the children at day care located inside the prison at which their mothers were serving their sentences (Jörg et al., 2020).

In fact, for certain researchers basing work on the principles of feminists and human rights, it is the very personal implications that incarceration entails that deserve condemnation. For example, Golden (2005) refers to the condition as "a public assault on children," and Fentiman, (2014) believes that the reason societies choose to separate children from their mothers is that the mothers pose a threat to society. However, the threats posed by imprisoned mothers to children and society should be recognized. A forensic risk assessment, therefore, has to be done in a case-by-case analysis to balance the child's best interest against what is viewed as the concerns for society. Mothers with personality disorder may pose dangers to their children in prison situations.

In addition, women sex offenders could sexually assault their children, while radicalized jihadist mothers may want to recruit their children to commit terrorism. From the developmental point of view, a young child best survives through the close and nurturing relationship with at least one primary caregiver that can be provided within an adapted penal environment. However, if severe psychiatric problems occur within the mother–child relationship, the child may need to be separated from the mother and placed in foster care for his or her well-being.

Safeguarding the best interest of children of incarcerated mothers needs comprehensive policies that will address emotional, social, and educational needs of the children and at the same time provide support to maintain and strengthen mother-child bonding. Therefore, this essay will consider the many challenges these children face in light of the deep impression of maternal incarceration on their well-being, with some policies and practices that can help protect their best interests.

The Impact of Maternal Incarceration on Children

➤ Emotional and Psychological Impact

Imprisonment of a mother may have very deep emotional and psychological influences on her children.

Children might feel left, guilty, and anxious about themselves (Haag et al., 2015). Research indicates that the sudden departure of a main carer can cause attachment disorders, depression, and higher aggression. For instance, Jones et al. (2022) revealed that children feel it is a death sentence when they lose one parent to incarceration and it comes with weighty alterations in their mental health. The statistics from the Annie E. (2016). Casey Foundation showed that children who have incarcerated parents are at a higher risk for anxiety and depression than other children. That could manifest through behavior, formation of relationships, or even self-esteem. The sudden removal of a mother from a child might disturb their sense of security and stability.

Emotional burdens during separation can increase because of the stigma attached to having a parent in prison, causing social isolation. Because of this stigma, most children are hesitant to share about their experiences, thus isolating them further from peers and the community. These disturbances in emotions can result in lasting effects on the mental health if not catered for in time. Murray, Farrington and Sekol (2012) established that children with incarcerated parents are more likely to develop antisocial behavior and mental health problems. These effects of maternal incarceration will often go beyond the feeling to an immediate emotional distress. Long-term studies have found that children of incarcerated mothers tend to partake in substance abuse and criminal activities once they reach teenage and adult life (Roettger et al., 2023). This cyclical behavior pattern calls for early prevention strategies and long-term support.

In some cases, the child may feel loyal to the mother but also experience feelings of anger at the disruption in life that the mother caused. These intricate, composite feelings can result in internalized stress and behavioral problems, which further complicate their psychological well-being (Thorne, De Viggiani, & Plugge, 2023).

➤ **Social and Educational Challenges**

The children born to mothers who were incarcerated often face very many social and educational challenges.

Disruption in schooling due to changes in living arrangements (Platt & Gephart, 2022). Due to the fact that most the children will be moved to foster care or stay with relatives, which is bound to changing schools. Morrison & Drake, (2022) highlights that such children are likely to experience multiple placements during their time in foster care, which disrupts education and social ties. It is

likely that there is academic instability and low performance due to relocations. According to the National Conference of State Legislatures (2019), foster care children are more likely to retain a grade and have relatively poorer academic records compared with their counterparts. This academic disruption will likely to affect them long after a good number of years, resulting in decreased graduation rates and the pursuit of higher education.

Peer stigmatization and exclusion (Shlafer & Poehlmann, 2010). They may be exposed to bullying and ostracism that further deteriorate their social development and academics. Isolation will only make it worse for any emotional problems. Miller (2006) found out that the children of jailed parents usually internalize stigma, whereby its impacts last long with respect to self-esteem and social relations. They find it difficult to make friends and hence feel lonely and isolated, which at times can be complicated by emotional distress. Furthermore, Nesmith and Ruhland (2008) argue that negative sentiments from teachers and fellow students trickle down to children whose parents are incarcerated and affect their school experience and performance.

The inability of such children to make friends creates feelings of loneliness and isolation, which can further complicate emotional trauma. Add in the complications of attaining an education without a stable home. Turney and Haskins (2014) reveal that children of incarcerated mothers tend to be homeless and live in abject poverty, conditions under which they are bound to develop poor academic performance among other setbacks. Socially, the children mostly manifest challenges associated with forming relationships and keeping them as a result of changing residence and the stigma surrounding a parent's incarceration. The effect of such isolation could result in the inability of the children to socialize properly in the future or to cultivate healthy interactions (Nichols & Loper, 2012).

Safeguarding Measures for Children of Incarcerated Mothers

➤ Policies and Practices for Support

Effective policies and practices are essential to safeguard and protect the well-being and interests of children of incarcerated mothers.

Parenting programs in prisons that allow mothers to develop parenting skills (Goshin & Byrne, 2009). The programs can incorporate parenting classes, therapy, as well as support groups that help mothers maintain their role of caregivers. The Bedford Hills Correctional Facility in New York and

PACT (Prison Advice and Care Trust) operates at Styal Prison, for example, had an integrated parenting program that included child development classes, counseling, and visitation with children on a regular basis. The addition of parenting programs could potentially allow mothers to maintain a positive relationship with their children. Belinda et al., (2023) identified that, mothers who attend parenting programs in prison are more likely to engage with positive parenting practices and maintain contact with their children. These programs have not only been seen to be beneficial for the mothers in terms of skill acquisition and knowledge but also act as a source of support in matters relating to the emotional and developmental requirements of the children.

Visitation programs that facilitate regular contact between mothers and their children (Poehlmann-Tynan, 2015). One of the notable programs run by PACT (Prison Advice and Care Trust) at Styal Prison is the 'Visiting Mum' initiative, which helps to maintain regular, high-quality contact between mothers and their children. This program involves structured visitations in a child-friendly environment, allowing mothers to engage in positive parenting practices despite their incarceration. The aim is to provide a stable and supportive setting for children during visits, which can significantly reduce the trauma and stigma associated with having a parent in prison. Frequent visitation can maintain the emotional connection, giving children a sense of constancy and stability. Such visiting programs that offer a child-friendly atmosphere help to diminish the trauma associated with visiting prisons; this nature of the program has been shown to make sure that the parent-child relationship is preserved. To illustrate more, some of them are;

- Programs like the Girl Scouts Beyond Bars initiative which also facilitate regular visits between incarcerated mothers and their daughters, helping to strengthen family bonds and provide emotional support (Block & Potthast, 1998).
- Programs like the San Francisco Sheriff's Department's "Resolve to Stop the Violence Project" include family reunification services that promote frequent and meaningful contact between incarcerated mothers and their children.

Healthcare Services

Regular medical visits, immunizations, and pediatric care are the parts that help maintain the physical health of children in prison. The United Kingdom's "Mother and Baby Units" (MBUs) serve as the best model for offering full healthcare services to the mother and her child. They ensure that the children are frequently checked by the medics, supplied with all the necessary

immunizations required, and provide immediate access to the services of a pediatrician. Such services protect and monitor the children's health and maintain their well-being, ensuring that medical issues are dealt with quickly (HM Prison and Probation Service, 2020). In the USA, there have been similar moves to this. For example, Bedford Hills Correctional Facility in New York runs a prison nursery program allowing children to stay with their mothers until they reach 18 months old. This program involves all the medical facilities in that the children receive the medical attention they may require at their early ages, which is considered to be a vital stage (Goshin & Byrne, 2009).

Educational Programs

Provision of early childhood education. This should remain a top consideration in ensuring proper cognitive and social growth among the children. The prisons ought to have educational materials and programs that support learning and growth, similar to what is offered out there for the rest of the kids. These are such educative programs done under the Fraser Valley Institution for Women's Mother-Child Program in Canada and aimed at early learning and child development. (Correctional Service Canada, 2019). Even PACT in UK also recognizes the importance of supporting the social and educational needs of children with incarcerated mothers. They facilitate educational programs that provide children with the necessary resources to continue their learning without interruption. These programs often include tutoring, mentorship, and access to educational materials these measures taken make it so that a child is not left behind on their developmental stages, on their mother's account of being imprisoned.

Psychological Support

The mothers and their children are, in many cases in need of psychological support to be able to stand the life in detention. Counseling services and support groups can address needs for care, help, and support in coping with emotional and mental health problems, which lead to resilient living. Studies indicate that children whose parents are detained or imprisoned face an elevated risk of an emotional and behavioral problem (Murray & Farrington, 2008). To reduce these impacts, prisons such as the Indiana Women's Prison in the United States and PACT (Prison Advice and Care Trust) that operates at Styal Prison offer emotional and psychological support services, such as therapy and counseling, to both mothers and children. These services are designed to help children make sense of their feelings and to gain healthy coping mechanisms while also supporting mothers in

their role as parents (Arditti, 2012). Additionally this organization for example PACT (Prison Advice and Care Trust) that operates at Styal Prison provides post-release support to help mothers reintegrate into society and rebuild their lives with their children.

Nutrition and Hygiene

Proper nutrition and hygiene are necessary for healthy growth in young children. Prisons must ensure that children receive balanced diets and access to clean and safe living conditions. In Colombia, with regard to the Buen Pastor Women's Prison in Bogotá, this particular facility has initiated an intensive program for children who are living with their imprisoned mothers, and provides for them a proper diet that will be healthy for their dietary requirements and support their growth and development to the fullest (Paz y Paz Bailey, 2013). Furthermore, this particular provision ensures the hygiene environment at these prisons which in turn provides a shelter for the passage of diseases and harbors the well-being interest of mothers as well as children.

This has yielded positive outcomes in terms of child development and the rehabilitation of mothers. However, these programs and support system is not uniform across all facilities. Differences in the availability of such programs would leave many children and mothers without needed support and again, underline the importance of being able to implement and fund these policies on a wide scale.

Although the policies and developmental support service are beneficial, their implementation and accessibility can vary, which may necessitate larger systemic changes.

➤ Broader Systemic Changes

Broader systemic changes should be put into place to ensure that children of incarcerated mothers receive sustained and consistent support.

More advocacy regarding reforms within the criminal justice system that take into account families (Arditti, 2012). Policies like sentencing alternatives for offenders who have committed non-violent crimes and family impact statements in sentencing can go a long way in reducing adverse effects on children. For instance, Family Impact Statements in Scotland allow judges to consider the impact that sentencing a parent will likely have on children when deliberating their sentences (Jones & Wainaina-Woźna, 2014). Reform serves to reduce the number of mothers in prison and minimize the effects on children. For example, according to the Sentencing Project

(2020), sentencing alternatives reduce rates of repeat offenses and promote family cohesion. Family preservation and family-friendly policies represent the opportunity to finally break the cycle of intergenerational incarceration and offer children a more stable and nurturing environment.

Community-based alternatives to incarceration for non-violent offenders (Sawyer, 2018). Programs such as community service, probation, and rehabilitation can keep families together while dealing with criminal behavior. For instance, the Women's Community Correctional Center in Hawaii has developed community-based alternatives to incarcerations, where mothers can serve their time with their children (Boudin, Stutz, & Littman, 2013). Alternatives to incarcerations have an opportunity for families to stay together and they can still control criminal behavior. The Vera Institute of Justice goes on to opine that community-based programs seem more successful in efforts to reduce recidivism and also in maintaining family stability than incarceration. These programs are more rehabilitative and holistic in nature because they focus on the causes of the crime while at the same time not being too negative to the families.

The report by the Women's Prison Association (2009), "Motherhood Behind Bars," is one of the proponents of more policy consideration in terms of parent-child relationships, and therefore allowing infants to be with their mothers in prison nurseries for a specific period immediately after birth. This systemic change also includes the needs of sensitivity training correctional staff towards mothers behind bars and their children. Staff training to facilitate family reunification with their offspring is associated with more positive outcomes for both mothers and children alike (Boudin, Stutz, & Littman, 2013).

Conclusion

Every child and every family situation is different. Hence, it is apparent that the sole method to ascertain what is best for a certain child is to evaluate the pros and cons of both co-detention and severing ties with the incarcerated mother.

A child's well-being from the effects of an incarcerated mother deals with broad perspectives that cater to their emotional, social, and educational needs while maintaining and strengthening the mother-child bond. The benefits of non-custodial alternatives for female offenders and their minor children are mentioned in numerous international and regional treaties. Although it is conceded

that these measures have been put to some use in some countries, there still are challenges that hinder their wide implementation. Hence, a huge number of mother offenders continue to receive custodial sentences, thus denying them the flexibility available under different forms of alternative measures of punishment.

Therefore, effective policies and support through parenting and visitation programs, together with advocacy for wider systemic changes, will cumulatively add up to better support from the society for these vulnerable children. Ensuring that these children receive what they need to be successful despite their mother's incarceration is a moral duty, but it is also an absolute key component of working toward ending the cycle of intergenerational incarceration and fostering a more fair and compassionate society..

References

Annie E. Casey Foundation. (2016). A Shared Sentence: The Devastating Toll of Parental Incarceration on Kids, Families, and Communities. Retrieved from <https://www.aecf.org/resources/a-shared-sentence>

Arditti, J. A. (2012). Parental Incarceration and the Family: Psychological and Social Effects of Imprisonment on Children, Parents, and Caregivers. New York: NYU Press.

Belinda, Lovell., Angela, C., Brown., Mary, Steen., Adrian, Esterman. (2023). Process Evaluation of a Prison Parenting Education Program for Women. *Advances in the Social Sciences*, doi: 10.3390/socsci12070370

Block, K. J., & Potthast, M. J. (1998). Girl Scouts Beyond Bars: Facilitating Parent-Child Contact in Correctional Settings. *Child Welfare*, 77(5), 561-578.

Boudin, C., Stutz, T., & Littman, J. (2013). Prison Visitation Policies: A Fifty State Survey. *Yale Law & Policy Review*, 32, 149-189

Clara, Chapdelaine-Feliciati. (2022). Translating the meaning-intention behind the “best interests of the child” principle in the Convention on the Rights of the Child. doi: 10.4324/9781003056652-9

Correctional Service Canada. (2019). Mother-Child Program. Retrieved from <https://www.csc-scc.gc.ca/women/002002-1002-eng.shtml>

Eddy, J. & Poehlmann, Julie. (2019). Handbook on Children with Incarcerated Parents Research, Policy, and Practice: Research, Policy, and Practice. 10.1007/978-3-030-16707-3.

Fentiman, Linda, C., (2014). Are Mothers Hazardous to Their Children's Health?: Law, Culture, and the Framing of Risk. Social Science Research Network,

Golden R (2005) War on the family: mothers in prison and the families they leave behind. Routledge, New York

Goshin, L. S., & Byrne, M. W. (2009). Converging Streams of Opportunity for Prison Nursery Programs in the United States. *Journal of Offender Rehabilitation*, 48(4), 271-295.

Haag, C., Zehnder, D., & Landolt, M. A. (2015). Guilt is associated with acute stress symptoms in children after road traffic accidents. *European Journal of Psychotraumatology*, 6. <https://doi.org/10.3402/ejpt.v6.29074>

HM Prison and Probation Service. (2020). Mother and Baby Units in the United Kingdom. Retrieved from <https://www.gov.uk/government/publications/mother-and-baby-units-mbus-in-prison>

Jones, Antwan & Buntman, Fran & Ishizawa, Hiromi & Lese, Katherine. (2022). The Mental Health Consequences of Parental Incarceration: Evidence from a Nationally Representative Longitudinal Study of Adolescents through Adulthood in the United States. *American Journal of Criminal Justice*. 10.1007/s12103-022-09689-2.

Jörg, M., Fegert., Liliane, Kistler, Fegert. (2020). Safeguarding the best interests of children of incarcerated mothers. *European Child & Adolescent Psychiatry*, doi: 10.1007/S00787-020-01664-8

Maedzenge, P., & Beichner-Thomas, D. (2023). A thematic analysis of parenting experiences of women in prison. University of Missouri-St. Louis and Illinois State University. <https://doi.org/10.21428/88de04a1.12891b70>

Marie, Claire, Van, Hout., Simon, Fleißner., Ulla-Britt, Klankwarth., Heino, Stöver. (2022). "Children in the prison nursery": Global progress in adopting the Convention on the Rights of the Child in alignment with United Nations minimum standards of care in prisons.. *Child Abuse & Neglect*, doi: 10.1016/j.chiabu.2022.105829

Morrison, M., & Drake, B. (2022). Foster children in care due to parental incarceration: A national longitudinal study. *Children and Youth Services Review*, 144. <https://doi.org/10.1016/j.childyouth.2022.106708>

Murray, J., & Farrington, D. P. (2008). The effects of parental imprisonment on children. *Crime and Justice*, 37(1), 133-206.

Murray, J., Farrington, D. P., & Sekol, I. (2012). Children's Antisocial Behavior, Mental Health, Drug Use, and Educational Performance After Parental Incarceration: A Systematic Review and Meta-Analysis. *Psychological Bulletin*, 138(2), 175-210.

National Conference of State Legislatures. (2019). Children of Incarcerated Parents. Retrieved from <https://www.ncsl.org/research/human-services/children-of-incarcerated-parents.aspx>

Nichols, E. B., & Loper, A. B. (2012). Incarceration in the Household: Academic Outcomes of Urban Schoolchildren. *Youth & Society*, 44(3), 420-447.

Paz y Paz Bailey, C. (2013). The Effects of Maternal Incarceration on Children in Guatemala. *The International Journal of Children's Rights*, 21(3), 365-389.

Platt, Christine & Gephart, Sheila. (2022). Placement disruption of children with disabilities in foster care. *Journal of Pediatric Nursing*. 66. 30-35. 10.1016/j.pedn.2022.05.004.

Poehlmann-Tynan, J. (2015). Children's Contact With Their Incarcerated Parents: Research Findings and Recommendations. *American Psychologist*, 70(3), 175-182.

Rainer, Grote. (2024). Current Issues and Common Challenges for the Protection of Human Rights in Europe, the Americas, and Africa. doi: 10.1093/oso/9780197744161.003.0005

Roettger, M. E., Houle, B., & Boardman, J. D. (2023). Parental imprisonment, delinquent behavior, and BMI gain in a U.S. Nationally representative cohort study of adolescents and adults ages 12-32. *SSM - Population Health*, 22, 101425. <https://doi.org/10.1016/j.ssmph.2023.101425>

Rubina, Petrosyan. (2023). Some Issues of Identifying and Ensuring the "Best Interest of the Child" in RA. *Jurisprudence*, doi: 10.46991/bysu:c/2023.14.2.142

San Francisco Children of Incarcerated Parents Partnership. (2016). Retrieved from <https://www.sfcipp.org/>

Sawyer, W. (2018). The Gender Divide: Tracking Women's State Prison Growth. Prison Policy Initiative. Retrieved from https://www.prisonpolicy.org/reports/women_overtime.html

Senko, V.. (2023). Historical aspects of the establishment of the institution of child rights protection in international law. *Analytical and Comparative Jurisprudence*. 479-482. 10.24144/2788-6018.2023.01.83.

Sentencing Project. (2020). Incarcerated Women and Girls. Retrieved from <https://www.sentencingproject.org/publications/incarcerated-women-and-girls/>

Shlafer, R. J., & Poehlmann, J. (2010). Attachment and Caregiving Relationships in Families Affected by Parental Incarceration. *Attachment & Human Development*, 12(4), 395-415.

Terry, Moraa., George, Gor. (2024). The nexus between the best interests of the child and detention of children in conflict with the law. doi: 10.58216/kjle.v7i1.444

Thorne, Matthew & De Viggiani, Nick & Plugge, Emma. (2023). What are the factors of parental incarceration that may increase risk of poor emotional and mental health in children of prisoners?. *International Journal of Prisoner Health*. ahead-of-print. 10.1108/IJPH-05-2022-0031.

Vera Institute of Justice. (2016). Why Ask About Family? A Guide for Corrections. Retrieved from <https://www.vera.org/publications/why-ask-about-family>